

		one-half of Decedent's remains, (2) ordering Respondent to release one-half of Decedent's remains to Petitioner within 30 days, and (3) awarding Petitioner \$1,000. This is the third hearing on Petitioner's amended petition. The court previously held hearings on April 9, 2026, and May 14, 2026. The court continued each of those hearings because Petitioner failed to file a proof of service showing Petitioner had served Respondent with any of the documents filed in this case. The court also indicated Petitioner failed to provide any authority authorizing the relief she seeks. The court encouraged Petitioner to seek legal counsel to assist in ensuring Respondent is properly served and in finding legal authority to authorizing the relief requested. On July 7, 2026, Petitioner filed a proof of service stating a registered process server served Respondent with the Summons, Civil Case Coversheet, Amended CM-010 Civil Case Coversheet, and Sum-100 Amended Summons on June 1, 2026. The proof of service, however, fails to show Respondent was served either the original or amended petition in this case or with notice of today's hearing. Moreover, Petitioner has not identified any authority that would warrant granting the relief requested. Although Health & Safety Code Section 7100 states the children of the deceased have a right to the ashes, it does not provide authority for the court to order division of the ashes after they have been distributed to one child. Petitioner cites no other authority in support of her assertion the remains should be divided. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635.) Furthermore, there also is no evidence to show Respondent actually has the cremated remains or how she allegedly obtained those remains Petitioner has been provided multiple opportunities to address the foregoing issues, but has failed to do so. Accordingly, the petition is DENIED. The clerk is directed to give notice of this ruling
13.	National Funding, Inc. vs. BGRT, LLC 2019-01084008	Before the court is the hearing on the claim of exemption presented by judgment debtor Charles Harney (Debtor) and the opposition to claim of exemption filed by judgment creditor National Funding, Inc. (Creditor). As set forth more fully below, the court finds the funds in Debtor's Chase Bank account currently being held by the San Diego

		County Sheriff's Department in the amount of \$1,023.29 is not exempt and thus the claim of exemption is DENIED. At the hearing on a claim of exemption, the court must make an order determining whether the property is exempt, in whole or in part. (Code Civ. Proc., § 703.580, subds. (c), (d)(1).) The court clerk must promptly transmit a certified copy of the order to the levying officer, whereupon the levying officer must release the property or apply it to satisfy the judgment in compliance with the order. (Code Civ. Proc., § 703.580, subd. (e).) The claimant bears the burden of proof at the hearing on the exemption claim. (Code Civ. Proc., § 703.580, subd. (b); <i>O'Brien v. AMBS Diagnostics, LLC</i> (2016) 246 Cal.App.4th 942, 948.) The exemption statutes, however, are liberally construed in favor of the claimant. (<i>Independent Bank v. Heller</i> (1969) 275 Cal.App.2d 84, 88.) Here, Debtor fails to cite any statutory provision supporting his claim of exemption and simply states his personal income is needed to pay rent, food, and other living expenses. He states no facts in support of his claim of exemption other than numbers set forth in in financial statement attached to the claim of exemption. To the extent Debtor relies on Code of Civil Procedure section 704.070, which exempts earnings paid to the judgment debtor within 30 days before a writ of execution is levied, Debtor fails to trace any funds claimed to be exempt based on their origin. (Code Civ. Proc., § 703.080, subd. (b).) To the extent he relies on Code of Civil Procedure section 704.225, which exempts money in the judgment debtor's deposit account to the extent necessary for the support of the judgment debtor (and spouse/dependents, if any), Debtor failed to show the funds currently being held by the Sheriff are necessary for his support. Indeed, Debtor's financial statement states his monthly take home income exceeds his monthly expenses by \$452 and he identifies a brokerage account with \$26,000 and a checking account with \$5,000 separate and apart from the \$59,000 he identifies in "Managed Retirement." Based on the foregoing, the claim of exemption is DENIED. Creditor's counsel shall give notice of this ruling.
14.	<i>Kurtin vs. Elieff</i>	Before the court is the motion of plaintiff Todd Kurtin (Plaintiff) for an award of attorney fees on appeal, filed on January 6, 2020 (ROA 2927). A status conference also is on